

1606-7
Jan. 28

demned Henry Ludlowe in 500^{li}, John younge the parson in a 1000^{li},¹ the other 2 in 100^{li} a peece, & the other thirde in 50^{li}, to be bounde to there good behauyoure, & imprisonment^{we}; & referred [Younge] to the Lo. Archbishop for his remoouinge oute of the ministrye.

[p. 299]

'Condemnare innocentem et iustificare nocentem, vterque abominabilis apud deum.'

Slander in
the King's
Bench

'Henry Ludlowe broughte an Action of the Case againste Joel Kinge for woordes, whereby he Charged him wth this facte, & recouered againste him a 100^{li} for dam-

Indictment

mages; but Joel preferred an inditement vpon this facte & it Coulede not be founde, so that it seemes M^r Ludlowe's

Written
evidence,
when good

strengthe ys greate in the Cuntrye; & therefore the Courte gaue him a 100^{li} dammages. & the Lo. Ch. Justice of Englaunde sayde that yf a man be robbed or wounded, & he wrytes downe a perfecte description of the men, wherebye they are knowne, & so dyes, this wilbe good euydence to Conuycete them: the Defendaunte in this Cause had examyned no one wytne, but had firste preferred a Crosse bille againste the plaintiffs, pretendinge that this was a practise & a iuglinge tricke, & in that bille, as they suggested, they had examyned many wytnesses, whereof they prayde to haue now the benefitte to reade them in this Cause, & the rather for that it was broughte firste into the Cowrte; but it was resolved by the Cowrte it was againste the Course of the Cowrte, & was not allowed not one to be reade *ad informandam conscientiam*.
Quod nota.

'Judicandum est de manifestis, non de occultis.'

1606-7
Feb. 13

In Camera Stellata, 13 Febr., 1606.²

SAVAGE,
NETHERSIE,
MARTIN,
GENNINGES,
and JOHN-
SON

John Sauage, £100, John Nethersie, 100 marks, Thomas Martin, £100, George Genninges, £30, and William Johnson, £30, were sentenced for building contrary to the proclamation of³ Elizabeth and 4 James,⁴ causing by this

¹ See Appendix VII.

² No names given.

³ Blank in MS.

⁴ The *Books of Proclamations* before referred to, *ante*, p. 179, n. 1, does not include any proclamation as

death, dearth, depopulation, disorder and waste of timber. The tenements to be pulled down.

fined for
building
contrary to
the pro-
clamations

There are 6,000,000 [*sic*], six hundred souls in the suburbs. London beinge *Camera regni* by the residence of the King. 'the Maior, y^e Recorder, & those that haue bene Maiors are [the] onely Justices of p. in London.' ¹

In Camera Stellata, coram consilio ibidem, Veneris, 24 April. 1607, termino Pasche.²

[p. 301]
1607
April 24

Cause of hearing against Gallette and others for riot and other practises and misdemeanours in receiving a blank warrant of the Under-Sheriff and putting a name in it, a usual fault and common with Sheriffs. And for this offence only as for a misdemeanour they fined Gallette £20, with imprisonment, and they acquitted him of the other offences, also the other defendants. 'And wished that the sherife had bene made a partie, vpon whome they woulde haue layed a heauyer Fyne for example sake.'

GALLETTE'S
case
Practice and
misdemeanour
Sentence

In Camera Stellata, 29 April. 1607.³

1607
April 29

Cause of hearing between Robinson, plaintiff, against Nethersall, formerly Mayor of Canterberrie, 'for forgerie and periurie, & againste twooe others; & did shewe forthe that Nethersall, Comminge to olde Leuette, a Clerke in Canterberrie, & findinge him full of greife & sorrowinge for the deathe of his sonne, he shewed him a bonde of his sonne's of 200^{li}. to be paid to y^e father yf the sonne dyed vnmaryed, & Nethersall Copied oute this in parchemente:

ROBINSON
v.
NETHER-
SALL
and others
Forgery and
perjury

to buildings in the fourth year of James. On p. 101, however, is printed *A Proclamation for Buildings in and about London*, which is probably the one referred to in the text, dated at Thetford, March 1, 2 James, 1604. No timber trees were to be used for charcoal or firewood; after Michaelmas then next 'no person shall build or erect any new house, or the forefront of any house in any new building, where

any former building was, within the same Citie of London, or the Suburbs thereof, or within one mile of the sayd Suburbs, except all the viter wals and windowes thereof, and the forefront of the same be wholly made of Bricke, or Bricke and stone,' etc.

¹ Page 300 is blank.

² Five Councillors and Judges were present.

³ Seven Councillors and Judges were present.

1607
April 29
p. 302]

5 Eliz. cap. 14

Sentence

Qv, if Lord
Chancellor
has a casting
vote

& afterwards nethersall, vpon a triall for the sayde dette vpon the sayde bonde, deposethe that he did see a true bonde out of w^{ch} he made that Copie; but it Coulede not appeare by any mann^r of prooffe that euer there was any true bonde; and this bonde was therefore sentenced in this Cowrte to be a Forged bonde, but no Forger then found; yet now it was proued that nicholas Leuette, one of the defendauntes, did sealle & delyuer this bonde in his brother's name after his brother was deade; & so was the sentence of the whole Courte that he was the Forger, & had his sentence for his punishement vpon the statute of 5 Eliz., cap. 14.¹ Nethersall & the other defendaunte, Henry Leuette, were condempned of periurye & forgerye by bothe the cheife Justices, the Lo. Knolles & Lo. of Northampton, & were acquyted by the Lo. Tresorer, lo. Archebishop & the Lo. Chauncellor as a case *non liquet*. 4 againste three: but I haue hearde y^e Lo. Chancellor hathe a Castinge voyce yf there be 4 againste 4 or three againste three, but what this Judgemente will prooue to be *Quere*; for it was well sayde by them that it were better to acquite 20 that are guyltie then Condempne one Innocente.'

1607
May 1

In Camera Stellata, coram Consilio ibidem, Veneris, 1^o Maij, 1607.²

MARGERIE
v.
DRUE
Forgery
[p. 303]

Forgery of a
will

Cause of hearing between Margerie, plaintiff, and Henry Drue, brewer and Mayor of Boston,³ defendant, for the forgery of the will of Richard Margerie, deceased. 'The defend^{te}, as he Confessed by his aunswear, Comminge to Richarde Margerie when he was sycke, he gaue him instructions by worde onelye to make his will; w^{ch} the defend^{te} did not then wryte any thinge; & the sayde Rych^d Margerie, w^{thin} 2 howers after suche instructions gyuen, dyed, & the defendaunte, w^{thin} 14 dayes after, wrote downe a formall wille as any Lawyer Coulede make, & sette

¹ For the punishment see Appen-
dix X.

² Eight Councillors and Judges

were present.

³ He was Mayor of Boston in
1595.

downe the perfecte disposition of all his landes & goodes, wth many legacies, so specialle & so artificialle, as it was altogether impossible for any man to doe, no, not any lawyer whatsoeuer; neither coude the memorye of man Carye awaye so muche; wth a Clause of reuocation of all former willes, & a solemne witnessinge by the partie himselfe, as though it had bene done in his lyfe time, & not as a declaracion of the intente & meaninge of his laste will; w^{ch} had bene good for goods yf aftewardes prooued as the declaracion of his intente by parolle onelye: & so bothe the cheife Justices delyuered there opinions:

'In this will the Defend^{te} had for better Collor to the same deuysed parte of the sayde Rich^d Margerie's estate to y^e Maior & Aldermen of Boston for the vse of y^e poore, & other parte of it to y^e Church, to one Doct^r wright, but y^e pl. beinge a simple, weake, younge Fellowe, & an apprentice, he woulde haue boughte his yeares; & as soone as he Came to full age he [the defendant], pretendinge to prooue a Father vnto him & to protecte him, gotte a Fefement of his lande, vpon truste as he supposed, but then he tolde him there was a will w^{ch} tooke y^e lande from him, & yet allwayes after that, & now also, denyed that there was any will; & yet, not longe before this suite began, he gotte a relleasse from him, so deuysed & penned as the lyke hathe bene seldome seene, *et clausulae inconsuetae inducunt suspicionem*. & in that was all questions, suites and controuersies touchinge y^e will relleashed; whereas there was then no question or suite concerninge y^e same.

The
defendant's
cunning

and fraud

[p. 304]

'For this offence he had a very sharpe sentence by y^e generall Consente of all y^e Courte, accordinge to y^e statute of 5 Eliz., cap. 14:—He shall paye doble Costes & damages to y^e partie greiued, shalbe sette one the pillorie & haue bothe his eares cutt of, his nostrilles to be slitte & cutte & seared wth a hotte iron, & shall forfeite to the kinge y^e proffittes of all his landes duringe his lyfe, & haue perpetuall imprisonm^{te} duringe life.'

Sentence

5 Eliz.
cap. 14

¹ This is the punishment imposed by the statute.

1607
May 6

In Camera Stellata, coram Consilio ibidem, Mercurij, 6 Maij, 1607.¹

EARL OF
LINCOLN
v.
DIMMOCK
—
Riot, etc.

Breaking
a pound

Breaking
down a pale
at night

[p. 305]

Sentence

‘Cause of hearinge *enter* Th’erle of Lincolne, pl., againste S^r Edwarde Dimmocke, & other, his seruauntes, Defendauntes,² for 2 ryottes & a practise or misdemeanor in ioyninge together to delyuer a petition to y^e kinge againste the pl. the firste riot was in breakinge a pounce & takinge forceablye Cattelle from thence, (w^{ch} are sayde to be *in Custodia legis*, & therefore to be repleuid); th’other riote was in breakinge downe 20 rodde of sawed pale in y^e nighte time, digginge vp the postes, & Carryinge them into y^e defendaunte’s yarde. S^r Edwarde Dimmocke denieth all vpon his oathe. the wytnesses proue that th’other defendauntes did saye that they did it by y^e Commaundement^{te} or procuremente of S^r Edwarde Dimmocke, or else they thinke they durste not haue bene so bolde:

‘For the practise, one Dethicke, one of the Defendauntes, was sentenced for y^e author of it & y^e agente in it, & he & th’other defendauntes were fyned 40^{li}, some 50^{li}, some 60^{li}, & imprisonm^{te}: but S^r Edwarde Dimmocke it seemethe was acquyted by most voyces, albeit Condempned by some.’

1607
June 10

In Camera Stellata, coram Consilio ibidem, Mercurij, 10 Junij, 1607.³

Death of Sir
John Popham, Lord
Chief Justice of the
King’s
Bench

While the Courte was sitting, ‘Newes was broughte that S^r John Popham,⁴ the Lo. Cheife Justice of Englaunde,

¹ Nine Councillors and Judges were present.

² See a cross bill between the same parties, *ante*, p. 233.

³ Eight Councillors and Judges were present.

⁴ Sir John Popham was born about 1531; educated at Baliol Coll., Oxford; called to the Bar at the Middle Temple; Autumn Reader, 1568; Serjeant at Law, 1578; Solicitor-gen., 1579; Attorney-gen. and Treasurer of his Inn, 1581; Speaker of

the House of Commons, 1581; Lord Chief Justice of the King’s Bench, 1592; he died June 10, 1607 (aged 76), as stated in the text, and was buried at Wellington, co. Somerset, where he had built himself a house, and where he founded a hospital for the maintenance of 12 poor men and women and the education of two poor children. See Foss’s *Judges*, Chalmers’ *Biog. Dict.*, Collinson’s *Hist. of Somerset*, ii. 483; etc.

was deade, some sayde of an vlcer in his bladder, others that he had taken pilles & the phisique neuer wroughte vpon him, others that he dyed of greife for sharpe wordes from the kinge's Ma^{tie}; but howsoeuer, he was a moste worthy man, & the state & Common wealthe receaued the greateste losse of him that euer felle since Queene Elizabeth's deathe; he was a Father of the Common wealthe, a maine pillar of the gospelle and true religion, a seuere & an vprighte Justicer, & the onely supporter of the Common lawes of Englaunde; an infinite losse the lawe & professors thereof haue of him, the gouernemente & gouernors will haue a greate misse of him, the lewder & looser sorte of people will reioyce, the godlye and vertuous doe lamente and mourne, & not wthoute iuste Cause.'

'Cause of hearinge by wydowe, pl., and Longe & others, [p. 306] LONGE'S case defendauntes, for a ryotous entrie into a howse, & lockinge vp the pl., a wydowe of 80 yeares of age, & keepinge her lockte vp for 3 weekes, destroyinge her goodes, & eatinge her prouision, a very barbarous & Cruell matter: & for w^{ch} offence the principall defendaunte was Fyned 100^{li}, the Sentence reste 20^{li}. a peece, beinge seruantes, & ymprisonmente of Course, & the pl. had 50^{li}. for her dammages, & was restored to her possessyon: but vpon this difference by the Lo. Chauncellor, for that he woulde not haue it Conceaued that this [Court] medlethe wth takinge or gyuinge possession by Iniunction or otherwyse, but yf vpon hearinge & sentence it appeareth a possessyon was gayned or taken by force, forgerye or Fraude, or the lyke, then by sentence this Cowrte will settle the pl. or defendaunte for the possessyon, as he was at the time of the forgerye, Fraude or Force.'

'Another Cause of hearinge betweene wydowe Rape & RAPE v. GIRLIN and others ,¹ plaintiffs, & Girlin & others, defendauntes, for a ryote, lykewyse in seruinge of proces & arrestinge a woman: the baillyes of the libertye of Blythinge² in Suffolke laye all nighte at Girlin's howse, & the nexte Riot

¹ Blank in MS.

² Blything is one of the Hundreds of Suffolk.

1607
June 10

[p. 307]

morninge, an howre before daye, wth swordes & stanes & lightes, wente, wth some of Girlin's seruauntes wth them, to the wydowe's howse, whoe kepte very secrete & hydde herselfe, & beinge let in at the firste doore by a mayde seruaunte of the howse, Came to the doore of the roome where the pl. laye, & entreated her to open the Doore, for they were to arreste her vpon an execucion as one sayde; & she refusinge, they broke open the Doore & wyshte her to make her readye to goe wth them, & so tooke her & Caryed her to pryson, where shee laye 30 weekes.

'But by the defendauntes shewinge, the truthe of the Case appeares to be that Girlin, the defendaunte, (by whose procurem^{te} all this ys intended to be done), was bounde wth the wydowe Rape, & for her dette payde 60^{li} vpon an execucyon vpon that bonde, & the wydowe hydinge her selfe, & refusinge to discharge him, he sued oute a *latitat* oute of the kinge's benche, & had a warraunte from the highe sherife to a knowne baillye, whoe wente earlye in the morninge accompanied wth twooe other his inferior bayllies, & one seruaunte of the Defendauntes, & beinge let in at the firste doore by a mayde seruaunte, they wente to the doore of the Chamber where the pl. laye, & desyred her to open the Doore for they had a warraunte to arreste her at suche a man's suite, naminge Girlin, but shee refused. And therevpon they peaceably & wthoute any other force or terror thruste open the Doore, & beinge entred into the Chamber, they wyshed her to make her readye, & eyther procure them sufficiente baylle, or else she must goe to pryson, w^{ch} she refusinge to doe, they Carryed her to the defendaunte's Girlin's howse, & from thence to the prison.

Riot or not?

'And whether vpon all this matter the Defendauntes showlde be Condemned or no, the Cowrte muche doubted, & in sentence was dyuyded, & by the greateste number (w^{ch} I¹ take to be the sentence of the Cowrte) they were acquyted, & dismissed to the Common lawe to trye it there.

[p. 308]
Sentence

'The Lo. Cheife Baron, the Lo. Ch. Justice, the Lo. Zouche, the bishop of London & the Lo. of Northampton

¹ John Hawarde.

did acquyte them, but the Lo. Chauncellor, the Archebishop & Secretarye Herberte did Condemne them, & fine them 20^{li}. & 30^{li}. a peece.

'And by occasyon of the sentence, the Lo. Ch. Justice delyuered good & necessary matter of learninge for seruinge & executinge of proces, whether the sheriffe or baylife mighte breake & enter a howse, or no, to serue proces. One booke saythe he maye, another saythe he maye not, so it seemethe *vexata questio* & that the bookes shoulde differ: but of late vpon resolution it is adiudged & published in Lo. Coke's reportes p. [V], fol. [91], *Seman's Case*,¹ that where the kinge is partie either in originall or iudiciall proces, he maye breake & enter a howse, & so in a *Capias vllagatum*, for there the kinge hath an intereste: but in an originall or *Latitat* where the subiecte ys onelye partie, there he Can not enter & breake the howse, for it is euerye man's Castle; but, yf the doore be shutte or lachte, he maye lifte the lache & open it & goe in, but not vnlocke or vnbolte it; but yf he doe breake open the doore, as in this case, the arreste notwthstandinge ys lawfull, but the partie shall haue an action of trespass for breakinge the doore, but th'arreste ys lawfull notwthstandinge: & so the bookes vpon this difference doe not contrarie one th'other as hathe bene conceaued, for this iudgemente & difference reconcyethe them. *quod nota*. And touchinge th'arreste by nighte, he helde it no offence by lawe, for otherwyse Fewe dettes woulde be payde; but a man can not distreine for a rente seruice by nighte, & the reason ys for that the lawe intendethe that the tenaunte woulde paye it yf it were by daye, or repleue [replevy] the distres.

Lord Chief Justice on the serving of process

Seman's case

Arrest at night is lawful, but not distraint

'But the Lo. Chauncellor seemed to dislyke muche theise arrestes by nighte, & helde opinion there was no auctoritie to proue them, for where the bookes are that a man maye distreigne in the nighte for dammage fesante, the reason ys because otherwyse the Cattelle maye destroye the Corne or pasture before the morninge, & when they are in the pounce they are *in gremio legis*. Theise new writtes,

[p. 309]

Lord Chancellor on arrests at night

¹ Semayne's case; *Peter Semayne v. Richard Gresham*, Mich. 2 Jac. I.

1807
June 10
attains

theise *latitats*, of late muche in vse, but in auintiente time neuer knowne nor hearde of, haue done muche hurte and tle good; but the originall wrytte is the true, auintiente & beste course, & safeste for euerye man to vse: but yet he experyence in London approouethe that it were very daungerous & mischeiuous to haue noe wryttes or proces serued in y^e nighte, for then woulde Fewe dettes be payde & manye deceites vsed.'

The Lord
Chancellor's
charge to
the Judges
and Justices
of the Peace

'The Lorde Chauncellor, the daye after th'endinge of this terme, in his speache delyuered to the Judges & Justices of peace,¹ did shewe how the kinge had an incessante Care for the good of his people & quyetnes of the Cuntrye: & that he hathe gyuen Commaundmente that all persons shoulde departe into there Cuntryes,² not for there idle pleasures, but to haue speciall care to the peace of the Cuntrye at this time: for the same is disturbed either by popishe or sectaries: theise vsurpacions & anarchies are daungerous; & the magistrates must haue Care that the people be not idle nor stirre vp discontente by prophecyes or pamphlets, & there be order in ecclesiasticall gouernors, & that there be not a pope in euerye parishe: it is the parte of a J. of peace to foresee & provide againste theise thinges, & not to vse the laste parte, w^{ch} ys the worste and the hangman's parte, punishemente, but to wthstande the beginninges: as now in theise late depopulations, a greate & wicked offence, a faulte in J. *de* peace & Sheriffes, that shoulde haue preuented & foreseene theise thinges. You must therefore looke carefullye to all seminaries & there Followers, & to there Conuenticles, to all vagrauntes stronge to labor, yet idle & like gentlemen in apparrelle & diete, yet wthout meanes, lybellers & deuysers of plottes.

p. 310]

' *Iniquum est iusticiam inire per gradus.*

' This *nescientia*, grosse ignorance, in some was a greate faulte. *erudimini iudices terrae.*

' 17 R[ichard] 2, cap. 8, Riot.

¹ Compare this with the other charges, *ante*, pp. 19, 56, 101, 106, 159, 161, 186, 263, 299, and *post*.

² Counties.

'13 H[enry] 4, cap. 7.

'Looke to the Justices of peace that are turbulent or neglecte there duties : for you that are Judges of Assise, the kinge hathe made Choyse of you for men of learninge & integritie, & hathe made you the visitors of his kingedome principallie & speciallie for the preservation of the peace of the lande. & to punishe depopulators wth all seueritie : to looke Carefullye to sherifes and vndersheriffes & there officers, whoe buye & selle the people, & retorne base & simple iurors : & yo^r Constables for the moste parte are the simpleste & meaneste of the people, a greate Faulte.'

In Camera Stellata, coram Consilio ibidem, Mercurij, 14 Octobr. 1607, adonque presente, Ellsmere, Lo. Chauncellor; Dorsette, Lo. Tresorer; Northampton; euesque de Londres, Rains; Lo. Zouche; Flemminge, Ch. Justice¹; Coke, Ch. Justice del Common place; S^r Julius Cesar, Chauncellor del exchequer, le primer temps que il seie en ceo Courte.²

1607
Oct. 14

Cause of hearing between Baron Snegge,³ plaintiff, Sherston,⁴ Mayor of Bath and Justice of the Peace, and others, defendants, in the matter of a riot. Sherston, being a lessee for years, and having paid his rent for fifteen years to Baron Snegge, at the end of his term, when the Baron was in the King's service on the Northern Circuit,

SNEGGE
v.
SHERSTON
and others
Riot

¹ Sir John Popham, Chief Justice of the King's Bench, died on June 10th, 1607; Sir Thomas Fleming, Chief Baron of the Exchequer, was appointed Chief Justice on June 25th following.

² See *post*, p. 336, n. 3.

³ Sir George Snigge was born at Bristol *cir.* 1545; admitted to the Middle Temple, 1567; called to the Bar, 1575; Treasurer, 1602; Recorder of Bristol, 1592 to 1604; appointed Baron of the Exchequer, 14 Oct. 1604; *ob.* 11 Nov. 1617; buried in S. Stephen's church, Bristol. See Evans, *Hist. of Bristol*, ii.

181; Barrett, *Hist. and Ant. of Bristol*, 514.

⁴ William Sherstone was the first Mayor of Bath under the Charter granted by Queen Elizabeth in 1590. The rent mentioned in the text was in respect of Berton farm in the parish of Walcott, which had been purchased by Sir George Snigge from Edmund Colthurste. The citizens claimed certain rights of common in this property, which led to a further dispute with William Snigge after the Baron's death. The matter was eventually settled by arbitration in 1619. See Warner's *Hist. of Bath*, 186.

1607
Oct. 14

kept possession by force, and he had in the house a 'drumme, caliuier, crossbowe, powder & shotte, 2 holberds, 6 prongs & diuerse staues,' but he did nothing but keep possession for five monthes. And he practised, by the advice of Chambers, another defendant, to 'stirre auncient title.'

Sentence
[p. 311]

And for these offences he was fined £100 and Chambers £200, for *plus peccat autor* [sic] *quam actor*. The other defendants, being servants of Sherston's, were fined £20 apiece, the Master to pay this by the course of the Court. And imprisonment [for them all] as of course.

1607
Oct. 16

In Camera Stellata, coram Consilio ibidem, Veneris, 16 Octobr. 1607.¹

SOL.-GEN.
v.
LOUCHE and
HOLLAND
—
Building
contrary to
proclama-
tion

Sir Francis Bacon, now the King's Solicitor,² informed *ore tenus* against one Louche, 'a kooke, & Roberte Hollande, a scryuener at temple barre,' on their confession, for erecting new buildings contrary to two several proclamations and in contempt of them; the one 22 Elizabeth, the other 4 James, and another published this day. (Coke, Chief Justice: *Vbi non est lex ibi non est transgressio*.) 'these buyldinges are againste the common lawe & the kinge's prerogative. *Quaere* the proclamation before in this book, where the particular mischiefs are set down.'³ 'We had neede of a lawe againste Inmates in London & outmates in the Cuntrye; for depopulations haue destroyed & decayed all other good townes, & seruantes for husbandrye are not now to be gotten.

'In buyldinge 3 thinges considerable, 1. *necessitas*, 2. *salubritas*, 3. *ornatus*.

'*Frequens et generalis contemptus est rebellionis prodromus*. In o^r punishement therefore wee must not looke backwarde. Lameche's punishem^{te} was tenne times to Cain's. *Interest reipublicae ne quis re sua male utatur*; & as it is the kinge's prerogative, so it is the auncient lawe

¹ Eight Councillors and Judges were present.

² He was appointed Solicitor-General June 25th, 1607.

³ This seems to refer to the case of Savage and others, *ante*, p. 318; in the MS. there is a blank page left, apparently for the Proclamation.

that no noble man or subiecte whatsoeuer maye buylde any forte or howse wth battlem^{tes}: 5 E. 2; Britton & Bracton; *quaere*.

'*Nihil est illicitum quod est necessarium. Necessitas lex temporis*; but the Lo. Chauncellor said he had learned a rule that the prerogative meddles not wth *meum et tuum*; the kinge Can not take my lande or goods & giue it to another, but where the Common state or wealthe of the people or kingedome require it, the kinge's proclamacion bindes as a lawe, & neede not staye a parliam^{te}; & as a father saythe, when lawes are in making euery man may speake, but being made *iudicandum est secundum leges*.

'Louche was fined 200^l,¹ imprisonm^{te}, & his howse to be plucked downe, & for contemptuous wordes againste a J. of p., Sr John Granger, he was to be bounde to his good behaioure. [p. 312]
Sentence

'Hollande, in respecte of his milde & modeste caryage, w^{ch} was much Commended by the Courte, he was fyned 100^l, imprisonm^{te}, & the forefronte of his howse to be newe buylde wth bricke before whitsontide nexte, or else to be plucked downe.'

Sir Henry Mountague,² Recorder of London, and now the King's Counsel at large, the place that Sir Francis Bacon had, informed, that these Causes being infinite, this Court two years ago appointed a Commission, and by it they found three hundred faulty in this, and in four large houses they found now 8,000 inhabitants, & the last great plague 800 out of one of them died of the pest; and if it be not reformed the people cannot have food, nor can they be governed.

¹ See Appendix VII.

² Third son of Edward, eldest son of Sir Edward Montagu, Chief Justice of the King's Bench and Common Pleas in the reigns of Henry VIII. and Edward VI. Elected Recorder of London, 1603; M.P. for the City of London, 1604; King's Serjeant, 1611; Chief Justice of the

King's Bench, 1616; Lord Treasurer, 1620, when he was created Baron Montagu of Kimbolton and Viscount Mandevill; Lord President of the Council, 1621; created Earl of Manchester, 1626; Lord Privy Seal, 1628; ob. 7 Nov. 1642. See Foss's *Judges*; *Complete Peerage* by G.E.C.

1607
Oct. 16
Ore tenus
on confession
only

Cooke [Coke] said that on *ore tenus* they ought only to proceed on confession, and not otherwise, notwithstanding it appear plainly to be true.

This last vacation John Rennols, Utter Barrister of the Inner Temple,¹ Johnson, a Bencher of the Middle Temple, Atkinson of Lincoln's Inne,² and Ellis of Graie's Inne,³ died.

1607
Oct. 21

In Camera Stellata, coram Consilio ibidem, Mercurij, 21° Octobr. 1607.⁴

STANDISHE
v.
WOOLNER
Riot

[p. 313]

Sentence

'Woolner, knighte, a Justice of peace, defend^{te}, & Standishe,⁵ plaintiff, for a riot. Standishe had a lease for yeares from the late Queene, & Woolner gotte a leasse in reuersion, bothe wth a Clause of re-entrie for non paiemente of rente, Standishe makes defalte of paiem^{te}, & Woolner not knowinge thereof, he makes no tender neyther; so bothe leasses were forfeited: & Standishe he takes a newe leasse in possession, & woolner, supposinge that Standishes first lease was in beinge, & that vpon the determinacion thereof his leasse in reuersion shoulde Commence, sendes at seuerall times seuerall persons, & but 2 at any one time together, to enter & take the possession, & to dryue off Standishe's Cattelle; & woolner's men wente & draue of the Cattelle, & beinge put in agayne by Standishe, they resyste them, beate & wounde them, & kille some of the Cattelle. & for this woolner was fyned 1000^{li}, his men, some 30^{li}, some 40^{li} a peece, imprisonm^{te}, woolner to be thruste oute of the Commission, & he & all his people to be bounde to there good behauyoure.'

¹ John Reynolds of Chesterford, co. Essex; admitted, Nov. 1586; called to the Bar, 1595.

² No one of this name appears in the books of the Inn for this period; there were several 'Atkins.'

³ There were several Ellises of Gray's Inn at this time.

⁴ Eight Councillors and Judges

were present.

⁵ The Standishes are a well-known Lancashire family, whose principal seat is at Duxbury. In the absence of any Christian name it seems impossible to identify the plaintiff in this case. I cannot identify the defendant either.

In Camera Stellata, coram Consilio ibidem, Venetis, 28 Octobr. 1607.¹

1607
Oct. 23

'Sr John Stafforde,² relator *versus* Parmeter, an Attornie of the Common place, for mainteynaunce & buyinge of a bonde; but the Defendaunte was acqyted by the Cowrte, yet blamed for that he woulde intermeddle in sollicitinge or followinge any Cause in any Cowrte but where he ys an attornie, for no man Can be a generall sollicitor, & the lawe takes knowledge of none to intermeddle wth lawe busynesses but *homo consiliarius et in lege peritus, et Attornatus siue procurator*; & they must doe it for there Fees; neyther can they disburse monie for Fees or Copies, but in there owne Cawses: & therefore that Attornie sayd well, w^{ch} was olde Crowe, when his Clyentes woulde haue him paye Fees & disburse monie for them, "I doe not loue," [p. 314] quothe he, "that any man showlde goe to lawe wth my monie." Which was Commended for a good & an honeste aunswere, & the man ys yet lyuinge, & hathe 500^{li} lande by the yeare. Yet yf a man wryte vnto an attornie to instructe or reteyne counselle, or take out proces for him, it is so Common & necessary for the poore of y^e Cuntrye that, albeit yt be an offence againste the lawe, yet this Cowrte will not sentence yt:

STAFFORD
v.
PARMETER
Maintenance
Acquittal

No man can
be a general
sollicitor

'For a man to buye a dette or a bonde, it is againste a rule in lawe, that noe man Can graunte a thinge in action, excepte it be for the satisfaction of a trewe dette, *bona fide, sine fraude et dolo*, as it is 24 H. 6, 5 H. 7, 5 E. 4, & so did this defend^{te}; but he was blamed allso for Compoundinge a Cause wthout lycense of the Cowrte, for no man oughte to doe it.

Buying
debts or
bonds

'Sr John Stafforde was greatelye blamed by the Cowrte that beinge so worthye a gentleman, so honorablye discended, & otherwyse so well deseruinge in himselfe, that he woulde stoope to so base an office as to be an ynformer, whoe

Sir John
Stafford
blamed for
becoming
an informer

¹ Nine Councillors and Judges and the Earl of Essex at Calais, were present. 1596. Metcalfe, *A Book of Knights*, Knighted by he Lord Admiral 137.

1607
Oct. 23

Not main-
tenance to
inform in
the Star
Chamber

[p. 315]

Outlaw
cannot be
witness

albeit they be necessarye in euerye well gouerned state, yet for the moste parte they are of the meaner & worste kinde of people ; but for feare of danger & discourage to others to doe the lyke, they spared to fyne him *pro falso clamore*, & the Lo. Chauncellor he sayd he would be sparinge in his bille of Costes : for it is not mayntenaunce for any man to ynforme in this Cowrte or in an indite-mente, for all is for the kinge, & 1 R. 2, cap. 4, & 4 H. 4,¹ doe not extende to this kinde of Relators ; but the Cowrte founde greateste faulte for that, vnder Collor of relation, he vsed the parties greeued for wytnesses, whose testimonie was disallowed by the Cowrte, & ordered now that none shoulde vse it hereafter : & that a man vtlawed Can not be a wytnesse nor receaued to wage his lawe. It was allso muche mislyked by the Cowrte that Commissioners vse to take depositions *affirmatiue aut negatiue*, a greate trouble to the Cowrte & not to be receaued, neyther any discreete Commissioner to vse it or admitte of them.'

ROGERS
v.
MACHIN

' Another Cawse of hearinge betwene Rogers & Machin, for 5^s fine for a Copieholde, was dismissed as vnworthie of the Cowrte.'

1607
Oct. 28

In Camera Stellata, coram Consilio ibidem, Mercurij, 28 Octobr. 1607.²

GOSSE
v.
BADCOCK
and others
Riot

Sentence

Coke quotes
Plutarch

' Cause of hearinge, Gosse, plaintiff, Badcocke, defend^{ts}, for a riot in entringe to a howse forciblye & keepinge the possession ; but the ryote was suche that they thoughte it vnfytte to trouble the Cowrte therewth ; yet beinge now posseste wth the same, they sentenced yt, & fyned the defend^{ts} 50^{li}. & his 2 seruantes 10^{li}. a peece, & imprisonm^{ts} of course. The Lo. Kooke sayde he remembred a prettie storie in Plutarche : an ill painter had painted a Cocke, &

¹ 1 Ric. II., cap. 4. 'The several Penalties of several Persons that do maintain Quarrels.' I cannot identify the statute of 4 Hen. IV., if

indeed the reference is to a statute.

² Eight Councillors and Judges were present.

one asked what yt was, & he sayde, "a Cocke;" then quoth he, "yt is a very Bad cocke, you are beste wryte ouer his heade 'this ys a Cocke,' or else they will saye it is a goose." The Lo. Northampton [said] that the propertie of a good Cocke ys to be *vocalis* to Calle men to there woorke, viz. to there lawfull vocation, but heere was a Badcocke indeede that Called them to this vnlawfull woorke.'

Lord North-
ampton's
joke

'Another Cause of hearinge, Russe, plaintiff, and Fraunklin, defend^{ts}, for Forgerye of a deede of Feoffem^{ts}; but yt was proued by 5 wytnesses that the partye did sealle & delyuer the Deede, & that the same was reade vnto him, so yt Coude be noe Forgerye, albeit the Clerke had inserted other matter in the Deede then the partye gaue him instructions for, he seallinge & delyueringe the same as his Deede. & so he was acquyted & dysmissed.'

RUSSE
v.
FRANKLIN
Forgery

[p. 316]

Acquittal

In Camera Stellata, coram Consilio ibidem, Veneris, 30 Octobr. 1607.¹

1607
Oct. 30

'Cause of hearinge betwene Rowlie, plaintiff, & Penkethe, defend^{ts}, for matter of Riote vpon the sabaothe daye in the time of diuine seruice, comminge wth a Carte wth vittaille & other prouision, wth men & women, & entringe into a barne, & holdinge possession againste Irelande, a Justice of peace. but the proces was not dulye serued vpon the principall defendaunte, but vpon one of the Defendauntes onely, w^{ch} albeit it be sufficiente for an apparaunce or to make aunswere, yet *ad audiendum iudicium* it is not sufficiente; & therefore althoughe they were guyltie yet the Courte woulde not sentence them: & the Lo. Ch. Justice Coke sayde that albeit the Common lawe did not punishe the breache of the Sabbaothe daye, yet for his parte he woulde binde them to there good behauioure that vsed prophanation of that Daye, & he had good warraunte so to doe.'

ROWLIE
v.
PENKETHE
Riot

¹ Seven Councillors and Judges were present.

1607
Oct. 30
MOORE
v.
JACKSON
and others

' Another Cause of hearinge *enter* Moore, widow, plaintiff, & Jackson & others, defend^{tes}, but no affidavit was made that any proces was serued, & the Defend^{tes} did not appeare : & so it was dysmissed.'

STEPNEY
v.
WARREN
Misdemeanours

' Another Cause of hearinge, Steptney, plaintiff, againste Warren, defend^{te}, a Justice of peace in Breaknokshire, for many vilde misdemeanors : & referred to the nexte daye to be sentenced.'

[p. 317]
1607
Nov. 4

In Camera Stellata, coram Consilio ibidem, Mercurij, 4^o Nouembr. 1607.¹

STEPNEY
v.
WARREN
Misdemeanours

' The same Cause of hearinge betwene Stepnie, plaintiff, againste Warren, defend^{te}, a Justice of peace in wales, who had Committed many vilde, lewde & odious misdemeanors, & hauing no Counselle nor any matter of excuse or defence, pleaded in generall wordes the generall pardon, w^{ch} by th'opinion of the Judges was nothings, for that he oughte to haue pleaded it speciallye, wth all the exceptions : his offences were either suche as Concerned his priuate person, as multiplicitie of causeles suites againste dyuerse in moste Cowrtes, stirred oute of malice, & causeles, for vexatyon & reuenge, & to raise & drawe matter of benefytte to himselfe, keepinge twooe of his owne seruauntes to be Common ynformers, & takinge very baselye of some 10^s & 20^d for composition ; or his publike offices that he bare, either as a Justice of peace takinge a Cople of oxen & other bribes, Countenauncinge offenders, baillinge & suffringe to escape Felons, persons suspected of murder, & suche lyke offenders, goinge to the goale, takinge of irons from malefactors & others in vpon executions for dettes, gettinge possession of Cattelle by collar of a repleuin, (a thinge heretofore vsed & by th'opinion of the Lo. Coke adiudged felonie, & they dyed for it), rescuinge himselfe being arrested vpon a *Capias*, &c. : or, as he was a Commissioner for the subsidie, admittinge of some Cessors that payde nothings, takinge monie of

¹ Eleven Councillors and Judges were present.

others to discharge them ; or, as he was tresorer for the poore, hauinge Collected & gotten into his handes 46^{li}, & disbursed noe parte of it for the vse of the poore : or, [as] he was an eschetor, thereby defraudinge the kinge of his rightes. For any one of theise offences seuerallye by it [p. 318] selfe the Cowrte was of clere opinion that it was worthye of sharpe & seure punishement, & in iudgem^{te} or punishmente the person of any man ys not to be respected, but th'offence, *pena delicto non delinquenti* ; & the punishm^{te} or offence of one Justice of the peace ys no disgrace to all the reste that are vertuous, honeste, painefull, & an honorable & necessarye callinge or office, wthout whome the fabrike of the gouernemente Can not Contynewe : but th'offence is the greateste when Justice is made th'instrumente, Collor, shadowe, or stalkinge horse to offende, forgettfull of his othe as a J. of peace, of his othe as a leige man taken at 12 yeares of age, a necessary law & fitte to be still obserued ; yf theise periuries had bene pertycularlye Compleyned of, the Cowrte woulde haue sentenced him in that kinde. He made a *supersedeas* for felonie, a thinge neuer hearde of before : For his offence as a Commissioner of the subsidie, it was verye greate, & albeit he be not ymmediatlye sworne, yet by his oathe as a Justice of peace he is sworne to execute the same trulye, & all men haue assented to the same in parliam^{te}, & it is the kinge's dette euen as tythes are due to y^e Church, so let the kinge at the leaste haue the tenthe, for it is a miserable thinge that the state & kingedome shoulde be so riche & the kinge's treasure so poore. Sythence the Queene's deceasse many necessarye & needefull Charges haue bene imposed vpon the kinge, suche as the lyke were neuer hearde of in this kingedome, as the Queene's buriall, in w^{ch} the kinge Commaunded very honorablye that noe Coste shoulde be spared for her whose memorye will be euer blessed & honorable, yet she wanted one greate blessinge, w^{ch} to o^r exceedinge greate Comforte we are now more happie, the yssues of his [p. 319] Ma^{tie} : his Comminge in the Queene's, the prince & all the posteritie [*sic*]. The Lo. Treasurer, as proper to his place,

1607
Nov. 4

Sentence

spake very muche to this purpose : & the Lo. Coke helde it a greate offence, the defraudinge of the poore, a good & a Charitable lawe, & *panis pauperum vita pauperum, qui defraudat eos vir sanguinis est* : & by all it was Conceaued a masse of offences ; for all w^{ch} he was Fyned 2000 markes, ympri-sonm^{te} of course, to weare papers aboute Westminster halle, at the Assises & at the Commission for the subsidye, to be bounde to his good behauyore, to be disabled from bearinge any ministeriall or iudiciall office, to repaye the 46^{li}. to the vse of the poore, & 5^{li}. a peece to all those that he hathe wrongfullye sued, & good Costes : & there was one other defend^{te} againste whome they did not proceede, he was dismissed wth Costes.'

1607
Nov. 6

In Camera Stellata, coram Consilio ibidem, Veneris, 6 Nouembr. 1607.¹

EARLNE
v.
WATKINS

Acquittal
Plaintiff
fined

'Earlne, plaintiff, Watkins, defendant ; *mes* S^r Nicholas Hide² was the man that Followed it againste one Chase for a bargaine of his timber ; after 2 trialls & the bargaine proued, he sued the wytnesses & some of y^e Jurye heere for periurye, a very tryflinge Cause ; & the defend^{te} was dismissed wth Costes, & the pl. fyned 40^{li}. & 20^{li}. dammages to the defend^{te}.'

DUDGEON
v.
BURINGTON
and others
—
Riot
Sentence

'Another Cause of hearinge, Dudgeon, pl., & Burington & others, defend^{tes}, for matter of riote in beatinge, woundinge & mayminge the pl., in the Churcheyarde in Herefordshire : three of the defend^{tes} were fyned 200^{li}. a peece, commytted, & before there delyueraunce to be bounde wth good suerties to there good behauyore, & the pl. to haue good Costes, & 60^{li}. dammages in regarde of his woundes & innocente bloude that he shedde.

[p. 320]

'But Secretarie Herberte and S^r Julius Cesar³ gaue

¹ Eleven Councillors and Judges were present.

² Probably Sir Nicholas Hide of Albury, co. Herts, Sheriff 17 James I. ; created a Baronet 8 Nov. 1621. Burke, *Extinct Baronetage*.

³ Sir Julius Cesar was the 3rd

son of Cesar Adelmare, physician to Queens Mary and Elizabeth. At this time he was Master of the Court of Requests. He was afterwards appointed Master of the Rolls. Died 1636. Foss, *Judges*.

there sentence accordinge to y^e statute of 5 E[dward] 6, cap 4, which is, if any one shall by words quarrel or brawl in a church or churchyard and the offence is proved by two witnesses, the offender, if a layman, shall be suspended by the Ordinary *ab ingressu ecclesiae*, and if a clerk, from his office. If any one smite or lay violent hands on another in church or churchyard, *ipso facto* he shall be deemed excommunicate. If any strike another with a weapon, or draw a weapon with intent to strike another, and be convicted of this by the verdict of 12, on his own confession, or by two lawful witnesses, before the Justices of Assize, the Justices of *oyer et terminer*, or the Justices of the Peace at their Sessions, he shall be sentenced by the Justices before whom he is so convicted to have one of his ears cut off, and if he have no ears, he shall be burned on the cheek with the letter 'F' for 'fraymaker' or 'fighter,' and he shall be *ipso facto* excommunicate.

Herberte
and Caesar
differ
5 Edw. VI.,
cap. 4

'But the Judges differed from them as before, firste for that the bill was not framed vpon this statute nor any other speciall statute, but generallye, & allso this statute lymitethe pertycularlye the Judges of th'offenders againste that lawe.

'Yet the Lo. Chauncellor was of opinion that this Cowrte mighte giue that sentence, or any other Corporall punishem^{te} but lyfe: yet the Lo. Coke sayd that *maxima pecuniaria pena maior est quam minima corporalis*. & in that respecte the sentence was the greater, for Churchyardes are consecrated to pious vses, the places where the temples of the holye ghoste lye, the bodyes of the sayntes, men are to be in peace to doe there deuotion; a growing euell, men gyuen to prophanenes, the nexte waye to Atheisme, whereas heretofore they were sanctuaries & places of refuge; & by the aunciente lawe noe preiste either goinge or comminge from the Church Can be arrested in his person: & so they all wysshed that there mighte Care be had to punishe those that vsed either prophanation one the Sabaothe daye, or in Church or churchyard, and that the people mighte resorte & Contynewe at y^e Church wth deuotion all the time of diuine seruice.'

Churchyards

[p. 321]
1607
Nov. 12

In Banke le Roy, Jovis, 12 Novembr. Termino Michaelis, 1607, Jacob. Regis Britanniae 5°.

HOLLIDAY
v.
KENRICKS
Ejection

A Jury was adjourned to this day between Sir Leonard Hollidaie, Mayor of London,¹ plaintiff, and Roberte Kenricke² of Northamptonshire, defendante, in *eiectione firme*. The names of the Jurors :—

W^m Clerke; W^m Lie;

Challenge of
Juror

Thomas Lete;—(He was challenged, because the plaintiff claims a lease for 2000 years in a Manor which the defendant had purchased from the Earl of Darby, and the said Juror is a tenant [?] of this manor for freehold and copyhold. It was allowed as a good challenge.)

Thomas Watts; John Berrowe;

Thomas Judgate: Edwarde Ashbie;

Edwarde Arnoll; Henrye Leake;

Thomas Muscotte; Henrye Hickeman;

Roberte Gennowaye.

Adjourned

It was adjourned to Easter Term for default of appearance of the Jurors.

1607
Nov. 12

In Curia Wardorum, Jovis, 12 Novembr. 1607, Jacob. 5°; adonque presente, S^r Roberte Cecill, M^r del Gardes, Principall Secretarie al roye, Vicounte Cranborne, Counte de Sarum, et del priuie Counselle; Flemminge, Ch. Justice de Banco; Coke, Ch. Justice de Banco Communi; Tanfeilde, Ch. Baron; Pepper, Attornie del Gardes; S^r Roger Wilbrom, Surueyor del Gardes, and M^r del Requests et Chauncellor al Roigne.

The great cause between the executors of Lord Mount-

¹ Sir Leonard Halliday, Merchant Taylor; knighted at Whitehall, July 26, 1603; Lord Mayor, 1605. Son of William H. of Rodborough, co. Glouc. See *Remembrancia*, 495. There is a pedigree of the Hallidays of Rodborough in Burke's *Commoners*, ii. 181.

² Robert Kendrick or Kenwick purchased the manor of King's Sutton, co. Northampton, from William, 6th Earl of Derby in 1598. He died 1 Mar. 1616-7, and was bur. at Sutton. See Baker's *Northamptonshire*, i. 694; Bridges, i, 178.

ioye, Earl of Deuonshire,¹ viz. :—Lord Danuers,² Earthe & Wakeman, executors, and Sir Henry Baker⁴ and Sir Richard Champernowne, claiming to be the heirs of the said Earl of Deuonshire, now dead without issue, and the question now was which of them is the heir to the Earl. A Jury was now returned to find the office and the heir. Serjeant Forster, Hide, Thomas Crewe, Richard Martin and Sir Henry Mountague, the Recorder, were of Counsel with the executors; Serjeant Nicholls and Whitlocke with Sir Richard Champernowne; George Crooke and Richardson with Sir Henry Baker. The Counsel for the executors moved that the first thing according to the writ is to inquire what lands descend, for if no lands descend, the heir shall not sue out livery, but by previous consent they may proceed, and also they may examine their witnesses.

'The pedegree produced for S^r Rich^{de} Champernoun was that Charles, [8th] Lord Mountioye, was sonne to James, [6th] Lord Mountioye, who was sonne to Charles, [5th] Lord Mountioye, who was sonne to William, [4th] Lord Mountioye. Charles, the laste Lord Mountioye, Earle of Deuonshire, dyed wthoute yssue, so there the dyrecte lyne ended; & now theise challenge in the Collaterall lyne. Constance was syster to W^m [4th Baron], &

³ THE EARL
OF DEVON-
SHIRE'S CASE

[p. 322]
Sir Richard
Champer-
noun's case

¹ Charles Blount, 8th and last Baron Mountjoy, succeeded his brother, William, in 1594; he was elected a Knight of the Garter in 1597; General of the Army in Ireland and Viceroy (with the title of 'Lord Deputy') 1600 to 1603, and as 'Lord Lieutenant' from 1603, having during that period subjugated the great Irish rebellion under the Earl of Tyrone. He was, in reward, created Earl of Devonshire, 21 July, 1603. He went through the ceremony of marriage, 26 Dec. 1605, with Penelope, Lady Rich [see *ante*, p. 172, and Appendix IV.], dau. of Walter Devereux, Earl of Essex; she had obtained an ecclesiastical divorce *a mensa et thoro*, 15 Nov. 1605, from Robert, Lord Rich, her husband. The Earl died without legitimate issue 3 April, 1606. *Complete Peerage*, by G. E. C.

² Sir Henry Danvers, 2nd son of Sir John Danvers of Dantsey, co. Wilts, and of Danby, co. York, was created Baron Danvers of Dantsey, 21 July, 1603, and Earl of Danby, 5 Feb. 1625-6. His elder brother, Sir Charles Danvers, was attainted for participation in Essex's rebellion in 1602. See *Complete Peerage* by G. E. C. See also the case of Danvers v. Long, *ante*, pp. 49, 61, and Appendix III.

³ Blank in MS.

⁴ Sir Richard Baker of Sisinghurst, co. Kent, knight, mar. Catherine dau. and heir of John Tirell, youngest son of Sir Thomas Tirell, knight; he was succeeded by his eldest son, John, whose eldest son was Henry Baker, the claimant in the text. See Burke's *Extinct Baronetage*.

1807
Nov. 13

daughter to John [3rd Baron], & married to Thomas Terrelle, by whome shee had yssue John Terrell.¹

'William [4th Baron Mountjoy] had 3 wyues, by whome he had yssue. The firste Elizabeth was maryed to the Marques of Exeter,² who died wthoute yssue, & John Baker was her Collaterall heyre. The seconde was Alice Keble, the wydowe of Keble,³ an alderman of London, & the daughter of Browne, an alderman of London, by whome he had issue Charles, Lord Mountioye, & Katherine whoe was married to John Champernounge,⁴ by whome he had issue Henry Champernounge, who had yssue Richard Champernounge.

'This pedegree they prove by 5 wytnesses & by a booke. 1. Charles Browne, grandchilde to S^r W^m Browne; 2. Thomas Parrie; 3. Lady Dorothy Parrie; 4. Margaret Pagette; 5. Michaell Blunte, knighte.⁵

Sir Henry
Baker's case

'S^r Henrye Baker descended from Constance.

'Dorothy was the 4th wyfe of Wyllyam & by her he had a sonne & three daughters, by one of w^{ch} daughters

¹ Sir Thomas Tirell of Heron, co. Essex, knight, mar. Constance Blount. Their eldest son, Sir Thomas, mar. Anne, dau. of Sir William Browne, Lord Mayor of London, and had a son John, whose only dau., Catherine, mar. Sir Richard Baker. *Burke's Extinct Baronetage*.

² This is not correct. Lord Mountjoy's first wife was Elizabeth, dau. and co-heir of Sir William Saye of Essendon, co. Herts. She died in 1506, leaving two daughters and co-heirs, Gertrude and Mary. Gertrude mar. Henry Courtney, Earl of Devon and Marquess of Exeter, and had two sons, who both died *s.p.* Mary mar. Henry Bouchier, Earl of Essex, and had issue a dau. Anne, who *ob. s.p. legit.*

³ Alice Keble was the third wife according to *The Complete Peerage*, where she is called dau. of Henry Keble, and widow of Sir William Browne, Lord Mayor 1513.

The issue of this marriage is correctly stated. Catherine Champernounge mar. 2ndly, Sir Maurice Berkeley of Bruton.

Sir Thomas Tirrell, father of Catherine Baker, Sir Henry's grandmother, mar. Anne, dau. of Sir William Browne.

Lord Mountjoy's fourth wife was Dorothy, dau. of Thomas Grey, Marquess of Dorset, and relict of Robert, Lord Willoughby de Broke. By her he had issue, John *ob. s.p.*; Dorothy mar. Roger Blewet; and Mary mar. Sir Robert Dennys. See *Complete Peerage* by G. E. C.; *Burke's Extinct Peerage*.

⁴ Eldest son of Sir Philip Champernounge of Modbury, co. Devon; Sir Richard Champernounge, the claimant in this case, mar. Elizabeth, dau. of Lord Chief Justice Popham, but *ob. s.p.* *Burke's Commoners*, ii. 272.

⁵ Sir Michael Blount of Maple Durham, co. Oxford. He was descended from Sir Thomas, brother of Sir Walter, 1st Lord Mountjoy. On the death of the Earl of Devonshire in 1606, he claimed the Barony of Mountjoy, but without success. *Burke's Commoners*, iii. 163.

S^r Rich^{de} Champernoun comes, sayde the Counselle of S^r Henrye Baker : & that they proue by a visitacion by Commission by the heraldes, & by th'accounte & estimation of th'erle of Deuonshire.

'But the daye beinge spente it was deferred to Satterdaye Followinge, to be then hearde agayne. And then to the seconde satterdaye in the nexte hillarye terme.' ¹ Adjourned

In Camera Stellata, coram Consilio ibidem, Veneris, 18^o, et Mercurij, 18^o Nouembr. [1607]. adonque presente, Lo. Chauncellor, archeuesque de Canterberye, Lo. Tresorer, Count Northampton, Count Exeter, euesque de Londres, Lo. Zouche, ambideux Cheife Justices, S^r John Herberte et S^r Julius Cesar. [p. 323]
1607
Nov. 13, 18

'Pemlie, a minister in Kente, vpon an *ore tenus*, his owne Confessyon, for a libelle againste Bishops & the gouernemente of the Church, set vp vpon a poaste of an In gate in a marktete towne in Kente, was Fyned 2000^{li}, to stande vpon the pillorye at westminster wth papers & there to lose one eare, & vpon the pillorye at Cheape-side & there to lose another eare, to be whipped at bothe places vnles he Confesse his faulte, & to be perpetuallye ymprysoned, but fyrste of all to be degraded from the ministrye before he receaue any Corporall punishement; w^{ch} he was the nexte thursedaye Followinge at Lambethe.' ² PEMLIE'S
CASE
—
Libel

Sentence

In Camera Stellata, coram Consilio ibidem, Veneris, 20 Nouembr. 1607.³ 1607
Nov. 20

'Cause of hearinge betwene Warren, plaintiff, et Steptney, defend^{te}, being highe sheriffe in wales, & for sellinge his hundredes or bailliwikes, & for holdinge his hundrede euerye twooe weekes contrarye to the lawe, for it oughte to be kepte from three weekes to three weekes; but of theise WARREN
v.
STEPNEY
—
Misde-
meanour as
Sheriff

¹ This case is not reported further in the MS. See Appendix XXI.

² See *post*, p. 343.

³ Eleven Councillors and Judges were present.

1607
Nov. 20

Adjourned

twooe the Judges woulde aduyse before they woulde delyuer there resolution, for it was a generall case & vsed by moste of the sheriffes of Englaunde; & so the cause was referred to another daye.¹

[p. 324]

LEWES
v.
LANY
and others
—
Taking
bribes, and
riot

Lord Coke
speaks in
favour of the
defendants

Judges must
not take fees

except in
some special
cases

Commis-
sioners may
take rewards
for their
trouble and
travelling
expenses, if
not done
corruptly

Acquittal

‘ Another Cause of hearinge, Lewes, pl., & Lany² & Goldsmithe of Graie's Inne, 2 Counsellors at the lawe, Fisher, an attornie at the Lawe, & others, defendautes, for that they beinge Commissioners vpon the statute of Bankrupts had corruptelye taken rewardes & caryed them-selues vndulye in th'executinge of the Commission: vpon there aunsweares yt appeared that they had trauayled & bestowed many dayes & tooke greate paines to execute the Commission, & after all was ended Lany had 5^{li}, Goldsmithe 5^{li}, & Fisher 12^{li}, to beare there rydinge Charges, & for there paines: & before any proffe was reade, the Lo. Coke spake very muche in the Commendacion of Lany & Goldsmithe, & it were harde to nippe them thus in the budde; he neuer hearde nor knewe but they were honeste men, hopefull & lykelye to proue good members to there Cuntryes; & for generall Judges of the lande, they can take nothinge, eyther before or after, for they haue there Fee of the kinge; yet in speciall cases some Fees are allowed them by the parties, as in a specyall assise, or in errors in london; but Commissioners, put in truste & not sworne, yf they Contracte not or bargaine Corruptlye before hande for some greate rewarde or Fee, & so that be an occasyon to demeasne themselues partiallye or corruptelye or affectionatelye in execution of that truste, he was of opinion that by lawe they may well take rewarde for there trauelle & paines, & it was no offence; (yet he was sorrye they had taken anythinge). But all the Cowrte was Cleare of opinion that yt was no offence, but iustifiable by the

¹ See a cross bill between the same parties, *ante*, p. 335.

² John Lany, eld. son of John Lany, Lent Reader of Gray's Inn, was adm. there 1590-1; John L. the father was adm. 1567. The son is probably the one mentioned in the

text, as Coke speaks of Lany and Goldsmith as though they were young men. There were several Goldsmiths of Gray's Inn about this time, and it is impossible to identify the one here referred to.

Common & ciuill lawe; & the Lo. Chauncellor sayde he was sorrye they tooke no more, (for wth a Lawyer *Cessans lucrum damnum est*), & yf Commissioners showlde not haue rewarde for there trauell & Charges, no Commissions woulde be executed. So they were acyuted by the sentence of all the Cowrte, wth very greate Commendation, especialye of Lanie, vpon knowledge of many of y^e lordes.

'But some other defendantes, for a riot in goinge wth gunnes & other weapons vpon the sabaothe daye in the time of deuine seruice (w^{ch} none can doe) to execute a warraunte of the Commissioners for the takinge the bodye of the Bankroupte, Lewes, for this riote they were Fyned, th'one a 100^{li}, th'other 100 markes, the thirde 100 nobles, & imprisonm^{ts} as of Course. The Lo. Chauncellor woulde haue yt entred in the order wth some touche of delyueringe theise [Lany and Goldsmith] wth Credyte & note of greate Commendacion by so manye honorable personages, & that they showlde haue good Costes, & the pl. to acknowledge his Faulte vnto them.'

[p. 325]
The Riot

Sentence

In Camera Stellata, coram Consilio ibidem, Veneris, 27 Nouembr. 1607.¹

1607
Nov. 27

'This daye Pemlye (beinge degraded by the archebishop) was accordinge to the former sentence, 18 Nouembr., put to his punishement, firste he had 25 ierkes,² & then stode in the pillorye, & had papers, & one of his eares Cutte cloase from his heade, & after that he had 25 ierkes more.'

Pemlye's
case

'This daye also a Cause was hearde betwene Thomas Edwardes, a phisitian of Exeter, pl., & Doctor Wootton, a phisitian, Norris' wyfe, an apothecarye, one other phisitian, & an apothecarye, defend^{tes}. Th'offence was a lybelle made by Doctor wootton, & by him & the reste published in the manner ensewinge. Edwardes & Doctor Wootton fallinge oute & vsinge bitter tearmes, Doctor

EDWARDES
v.
WOOTTON
and others
—
Libel

¹ Ten Councillors and Judges were present. was that he was to be whipped. Jerk, to beat: Halliwell.

² Apparently lashes; his sentence ² See ante, p. 341.

1607
Nov. 27

[p. 326]

Interrogatories 4
yards long

Libel or not

[p. 327]

wootton wrytes a letter & begins "Mr Docturdo & fartado," &c., more then 2 sides of paper full of vilde matter, ribaldrie & defamacyon, & enclosethe yt as a letter, & subscribes it, & sendes yt to Mr Edwardes, & keepes a Copie thereof, & afterwards publyshethe the same, & delyuers Copies to dyuerse whoe lykewyse reade & publishe the same to dyuerse, & saye that Doctor Edwardes will forweare them & beare them out in yt, howsoeuer or whatsoeuer yt coste him. This was greatelye to the defaming & damnyfinge of the pl., Edwardes, being broughte vp as an Apothecarie & allowed a phisitian by the College of Phisitions in london vpon examynation had, & otherwyse reputed a very honeste & discreete man: The Defendaunte Doctor wooton pretended that the pl. himselfe had firste published this lybelle, but made no proffe of it, & had mynistred 80 Interrogatories, 4 yardes of parchemente by the measure of the Lo. Chauncellor, againste the pl., thereby examyninge all the principall men of those Countreyes touchinge the honestye, Credite, reputation & Caryage of the pl. (a very daungerous presydenste & not to be suffred, for the pl. Can haue no knowledge thereof before publication); yet they all did generally wth one Consente aprooue the sufficiencye, honestye & good Course & Caryage of the sayd Compl., & no one wytnesse accused or touched him wth any blemishe in any kinde.

'The question was whether this was a lybelle or no, & resolved by the Judges & all the Courte that yt was a lybelle: for yf a man will wryte a pryuate letter defamatorye & not otherwyse publishe yt eyther before or after the wrytinge, he shall not haue an action of the case; but forasmuche as the same dothe prouoke malice & breache of the peace & reuenge, yt shalbe punished in this Cowrte & nippe it *dum seges in herba*; for being a letter onelye kepte cloase yt gyuethe no cause of accion because he hathe no dammages. & this beinge an offence that dothe prouoke reuenge, bringe daunger to the state & common weale, *et interest reipublicae*, & therefore an offence in this Cowrte to be seuerelye punished.